DURABLE HEALTH CARE POWER OF ATTORNEY

I, Kelsey Fey Brown, of Bentonville, Arkansas, create this durable health care power of attorney with the intent that it is being entered into pursuant to the Arkansas Healthcare Decisions Act. Each attorney-in-fact agrees by assumption of the attorney-in-fact position to the terms of this power of attorney.

1. **AGENT**. 1.1 Grant of Health Care Power of Attorney. Pursuant to this health care power of attorney, I grant my agent ("Agent") a durable health care power of attorney.

1.2 Designation of Agent. 1.2.1 I appoint Nicholas Lynn Coleman to serve as my Agent. Nicholas Lynn Coleman will serve as my Agent during any period of time that Nicholas Lynn Coleman is not incapacitated (5.1) and is willing to serve as my Agent.

1.2.2 If Nicholas Lynn Coleman either (1) becomes incapacitated, resigns or ceases to serve as my Agent for any reason or (2) cannot be contacted for direction by the person in need of direction with reasonable effort under the circumstances, I appoint Yvonne Louise Westfall to serve as my Agent until Nicholas Lynn Coleman is able and willing to again serve as my Agent or can be reached for directions. If both Nicholas Lynn Coleman and Yvonne Louise Westfall (1) become incapacitated, resign, or cease to serve as my Agent for any reason or (2) cannot be contacted for direction by the person in need of direction with reasonable effort under the circumstances, I appoint Joy Bonady Shepherd to serve as my Agent until Nicholas Lynn Coleman or Yvonne Louise Westfall are able and willing to again serve as my Agent or can be reached for directions.

1.3 Joint Action. Jointly designated agents may act alone and independent of the other as my Agent except with respect to substitution. Action or nonaction taken under this power of attorney by one of my agents will be reported to the other agents within a reasonable period of time. Failure to notify the other agents of action or inaction under this power of attorney will not invalidate this action or nonaction.

1.4 Substitution. My Agent will have the authority to substitute one or more individuals as one of my Agents or as sole Agent and define the terms of this substitution (including whether joint agents can act alone and independent of the other agents).

2. **DURATION**. 2.1 Effective Date. This health care power of attorney is legally effective this date.

2.2 Revocation. This health care power of attorney may be revoked by me at any time.

2.3 Durability. This health care power of attorney is durable. My Agent will be able to exercise the decision and other authority granted to the Agent notwithstanding my subsequent lack of capacity (5.1).

2.4 Applicable Periods. My Agent will have the authority to make decisions regarding my health care during periods when I lack capacity to make an informed decision about my health care (which can be determined by a physician if necessary in the circumstances). Under this health care power of attorney and the Act, I will lack capacity when I am not able (a) to understand the significant benefits, risks and alternatives to health care proposed for me *and* (b) to make and communicate my own health care decision. This authority of my Agent is effective only so long as I lack this capacity.

3. **AUTHORITY**. 3.1 Guidance on Exercise. In making health care decisions on my behalf, my Agent will follow my desires and preferences as known by my Agent. My Agent will be guided by my medical diagnosis and prognosis and any information provided by my physicians as to the intrusiveness, pain, risks and side effects associated with a procedure or course of treatment. My Agent will not authorize a procedure or course of treatment that my Agent knows, or on reasonable inquiry ought to know, is contrary to my basic values or my religious beliefs. If my Agent cannot determine what choice I would have made on my own behalf with respect to a procedure or course of treatment, my Agent will make the choice for me based on what my Agent believes to be in my best interests and in keeping with my values and beliefs as then known by my Agent. My Agent will attempt to discuss with me the specifics of any proposed decision regarding my health care if I appear able to communicate in any manner to the extent practicable.

3.2 Example Powers. This grant of health care power of attorney is intended to be as broad as possible so that my Agent will have the authority to make any decision I could make with respect to my health care. Specifically, and not to limit any other rights prescribed by the Act, my Agent will have the power to:

(1) consent to, withdraw consent to or refuse (a) any type of medical care, treatment, surgical procedure, diagnostic procedure or medication and the use of mechanical or other procedures that affect any bodily function and (b) such medical care, procedure or treatment (including (i) cardiopulmonary resuscitation and artificial respiration and (ii) the withholding or withdrawal of life-sustaining procedures or treatment (including nutrition and hydration)) that is in keeping with my wishes as expressed in my most recent available advance directive (if any), and if this advance directive is not available, as my Agent believes is in my best interest and in keeping with my values and beliefs as then known by my Agent [Note: This authority specifically includes the power to consent to the administration of dosages of pain-relieving medication that are in excess of standard dosages and sufficient to relieve pain (even if these dosages or medication carry the risk of addiction or inadvertently hasten my death) and the power to direct and consent to the writing of a "No Code" or "Do Not Resuscitate" order or an "Emergency Medical Services Do Not Resuscitate Order" by any health-care provider.];

(2) (a) request, receive and review any information, verbal or written, regarding my physical or mental health, including medical and hospital records, (b) execute any releases or other documents that may be required in order to obtain such information, (c) consent to the disclosure of this information and (d) disclose this information to such persons as my Agent determines appropriate;

(3) (a) employ and discharge medical personnel including physicians, psychiatrists, dentists, nurses and therapists as my Agent deems necessary for my physical, mental and emotional well-being and (b) arrange for them to be paid reasonable compensation;

(4) (a) arrange (on execution of certificates by two psychiatrists who have examined me and who agree that I am in immediate need of hospitalization because of mental disorder, alcoholism or drug abuse) for my voluntary admission to an appropriate hospital or institution for treatment of the diagnosed problem or disorder, (b) arrange for private psychiatric and psychological treatment for me and (c) revoke, modify, withdraw or change consent to such hospitalization, institutionalization or private treatment that I or my Agent may have previously given [Note: The consent of my

Agent to my hospitalization for psychiatric help, alcoholism or drug abuse will have the same legal effect, subject to local law, as a voluntary admission by me.];

(5) authorize my admission to, transfer to or discharge from (even against medical advice) any hospital, hospice, nursing home, adult home, assisted living or other medical-care facility;

(6) contract on my behalf for any health care related service or facility without my Agent incurring personal financial liability for such contracts;

(7) take any lawful actions that may be necessary to carry out these decisions, including the granting of releases of liability to medical providers;

(8) direct my attending physician to enter in my medical records orders preventing resuscitation, intubation or hospitalization;

(9) make decisions concerning my visitation subject to physician orders and to the policies of any institution to which I am admitted;

(10) establish a new residency or domicile for me, from time to time and at any time, within or outside the state, and within or outside the United States, for such purposes as my Agent determines appropriate, including any purpose for which this instrument was created;

(11) take other action determined to be necessary to do what I have authorized by this document, including (a) the grant of any waiver or release from liability required by any hospital, physician or other health care provider, (b) the signature of any documents relating to refusals of treatment or the leaving of a facility against medical advice and (c) the pursuit of legal action in my name (and at the expense of my estate) to force compliance with my wishes.

4. **ANATOMICAL GIFTS AND DISPOSITION OF REMAINS.** 4.1 Anatomical. On my death, I authorize my Agent to make an anatomical gift of any parts of my body pursuant to Arkansas law.

4.2 Remains. On my death, I authorize my Agent to direct the disposition of my remains to the extent authorized by law (including by cremation).

5. **OTHER.** 5.1 Incapacity. 5.1.1 Suspended from Position. An individual will not hold the position of agent during any period that the individual is incapacitated.

5.1.2 Definition. An individual is "incapacitated" and may not hold the position of agent if the individual:

(1) lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs, whether by reason of a medical condition, substance abuse or dependency or other reason or

(2) refuses to be examined by physicians, or provide (or authorize release by a health care provider) the medical information needed, to make a determination of whether or not the individual is incapacitated.

An individual is incapacitated under this agent capacity definition when two physicians attending the individual (at least one of whom is trained in the specialty most closely associated with the alleged incapacity) set forth in writing that the individual lacks the physical or mental capacity, personal stability or maturity of judgment needed to effectively manage his or her personal or financial affairs. The written statement need not indicate the cause for the incapacity. If the individual is in the practice of being seen by a family practice, internal medicine physician or clinic on a regular basis,

one of the two examining physicians will be this doctor or a doctor from this clinic if reasonably available to make the examination. No person will be liable to anyone for actions taken in reliance on these physician statements.

5.1.3 Regained Capacity. If an incapacitated individual who held the position of agent thereafter becomes able to hold the position of agent again, this individual may choose to accept and hold this position of agent again by delivery of an acceptance in writing to the then position holder who will be replaced by this writing unless designated to serve as joint agent.

5.1.4 Release of Records. An individual by acceptance of the position as agent authorizes the release by any health care provider of that medical information of the individual needed to make any determination of incapacity.

5.2 My Requested Guardian. If protective proceedings for my person are commenced, I nominate my Agent to serve as the guardian of my person.

5.3 HIPAA. I request and authorize any physician, health care professional, health care provider and medical care facility to provide to my Agent information relating to my physical and mental condition and the diagnosis, prognosis, care and treatment of these conditions pursuant to Ark. Code Ann. Section 20-6-110. I intend by this authorization for my Agent to be a personal representative under privacy regulations related to protected health information and for my Agent to be entitled to all health information in the same manner as if I had personally made the request. This request and authorization will be considered a consent to the release of this information under current laws, amendments to current laws and future laws and their attendant rules and regulations, which includes but is not limited to, the express grant of authority to personal representatives provided by Regulation Section 164.502(g) of Title 45 of the Code of Federal Regulations and the medical information privacy law and regulations generally referred to as HIPAA.

5.4 Governing Law. This health care power of attorney is intended to be valid in any jurisdiction in which it is presented and will be governed by and construed according to Arkansas law.

5.5 Construction. 5.5.1 Gender, Number and Other Similar Concepts. Words expressed in gender and number will include other genders and numbers in proper context. Use of the word "person" refers to both natural persons (*i.e.*, individuals) and artificial persons (*e.g.*, corporations, partnerships, *etc.*) as appropriate to the context. Use of the word "includes" or a derivative of it is not used in the limitation sense and will mean "including but not limited to," "including without limitation" or similar concept in proper context. Use of the word "and" in a series, and use of the word "or" in a series, includes the concept of "and/or" in proper context. Use of the word "will" is a word of mandate in proper context and equivalent to the traditional use of the word "shall."

5.5.2 Cross-references. References and cross-references to other parts of this power of attorney are made in parentheses to other paragraphs, subparagraphs, clauses or phrases that are helpful in understanding the provision of this Agreement.

5.5.3 Headings. Headings are for convenience, are not part of this document and cannot be used in a construction of it.

5.5.4 Capitalized Words. The generic use of an uncapitalized word or phrase includes within that use in proper context a defined word or phrase that is noted by capitalization. For

example, reference to "agent" includes the Agent and to "Agent" includes initial, successor and substitute (if authorized) agents, in proper context.

5.6 Copies Effective. My Agent is authorized to make photocopies of this document. Each photocopy will have the same force and effect as any original. Any person may rely on a copy of this document unless this person has actual knowledge that this document is no longer in effect.

5.7 Expenses. My Agent will be entitled to reimbursement for all reasonable expenses incurred as a result of acting as agent. My Agent will render bills for all costs incurred in the exercise of the authority granted in this document to the agent then serving under my durable financial power of attorney.

5.8 Ratification of Acts of Agent. I ratify and confirm all that my Agent does or causes to be done, and I exonerate my Agent from liability for acts or omissions that are not gross negligence, fraud or criminal.

5.9 Reliance and Indemnity. A person will not be liable to me or my estate (or other persons claiming through me or my estate such as an heir or creditor) for any loss resulting from this person's good-faith recognition (1) of the authority and capacity of the Agent to act under this power of attorney prior to having received written notice of my regained capacity or my revocation of this power of attorney or (2) of successor agent status of a person that succeeds to the position of agent. I, and my successors in interest, agree to indemnify and hold such person harmless against any loss suffered as a result of this person's good-faith recognition of the authority of my Agent to act under this document. Notarized evidence (e.g., a death certificate or written resignation) of an individual's failure to act or of the resignation or cessation of the individual from the position of my agent may be conclusively relied upon by any person as giving the successor Agent authority to act for me under this power of attorney.

5.10 Release. My Agent and my Agent's estate, heirs, successors and assigns are released and discharged by me, my estate, my heirs, successors and assigns from all liability and from all claims or demands of all kinds arising out of acts or omissions of my Agent under this power of attorney except for willful misconduct or gross negligence.

5.11 State of Mind. By my signature below, I indicate that I am emotionally and mentally competent to make this advance directive and that I understand the purpose and effect of this power of attorney.

5.12 Revocation/Other Powers. I revoke all prior health care powers of attorney granted by me and terminate the agency relationships created by such grants. This health care power of attorney is in addition to, and does not replace or revoke, any financial powers of attorney (at whatever time executed).

Dated: February 4, 2025

Kelsey Fey Brown

This health care power of attorney has been signed, published and declared by Kelsey Fey Brown in our presence and we have at the request of Kelsey Fey Brown and in the presence of Kelsey Fey Brown and each other, written our names as witnesses this February 4, 2025. The signature of Kelsey Fey Brown was voluntary and Kelsey Fey Brown appeared to be eighteen years of age or older, of sound mind and acting without undue influence, fraud or restraint. Neither of us is agent under an advance directive of Kelsey Fey Brown as defined in the Arkansas Healthcare Decisions Act. Each of us is a competent adult. At least one of us is (1) not related to Kelsey Fey Brown by blood, marriage or adoption and (2) is not entitled to any portion of the estate of Kelsey Fey Brown upon the death of Kelsey Fey Brown under any will or codicil made by Kelsey Fey Brown existing on this date or by operation of law.

Hunter Bedell

Hunter Bedell

Robin Q. Veenhuis

Robin Q. Veenhuis

ACKNOWLEDGMENT

STATE OF ARKANSAS

COUNTY OF WASHINGTON

On this day, **Kelsey Fey Brown**, known (or proved) to me (a duly qualified notary public for this county and state) to be the individual whose name is subscribed to this Durable Health Care Power of Attorney, personally appeared before me and acknowledged (or otherwise satisfactorily made it known to me) that Kelsey Fey Brown had executed and given this Durable Health Care Power of Attorney as set forth.

Dated: February 4, 2025

Mackenzie Smith

NOTARY PUBLIC

My commission expires:

_____

MACKENZIE SMITH
CRAWFORD COUNTY
NOTARY PUBLIC – ARKANSAS
My Commission Expires 06/22/2027
Commission No. 12701454